

THE NATURAL THEORY OF LAW.

Natural law in its simplest understanding and definition refers to the “Un written law” that is more or less the same for everyone everywhere. It is also concept of body of principles that is common to all mankind and generally posited, recognizable by human reasonability (human conscience).

Natural law as a philosophical theory states that humans have got certain rights, moral values and responsibilities which are inherent in human nature. This theory” natural law” is based on the idea that laws are universal concepts which are uniform and not based on culture or custom. Human beings are not taught natural law; they initiate it by making good and right decisions. Therefore, it is said to be discoverable through the **exercise of reason.**¹

The conceptualization of natural law is basically dictate of reason, thinking mind and sometimes called “**Conscience**”. It is law discovered by human reason. Natural law is also understood as “**God made law**” which we must conform if we are to be regarded as natural law.

With 2,500years of history, it is not surprising that the question “*what is natural law*” provokes so many different answers from different scholars with philosophical understanding. **The expression natural law has continuity but this does not mean that the concept has remained static.** It has had very different stages, meanings and has served entirely different purposes. D’Entreves points out “Many of the ambiguities of the concept of natural law that, it must be ascribed to the ambiguity of the concept of nature that underlies it.”² Thus, the concept of natural law has been defined by many scholars or authors accordingly as accessed below: - **St Thomas Aquinas (1225-1274)**, natural law is that part of eternal law

¹ What is Natural Law? <
<https://corporatefinanceinstitute.com/resources/esg/natural-law/>> accessed
15th.january.2023.

² Natural law (Rev.ed.,1970), pg.16

of God (“The reason of divine wisdom”) which is known by human beings by means of their powers of reason and association with God. Aquinas puts that “Human or positive law is the application of natural law to particular social circumstances. He believes that positive law that violates natural law is not true law. He further asserts that; natural law theory is a new basis in human reason.

St Thomas Aquinas further thought to advance the systematization of Catholic doctrine in which law was viewed as an aspect of God’s plan for mankind. Natural law did not begin with Aquinas; he built upon principles formulated by Greek and Roman scholars (who had written of the immutable unwritten laws of heaven), including Aristotle, who had differentiated the naturally just from conventionally just and Cicero who had proclaimed the true and primary law – the right reason of the High God.

Within the Catholic church, natural law doctrines had been shaped by scholars such as the following;

1. **Augustine (354-430).** One of the early Fathers of the Church, taught that absolute ideal laws of nature had been evident in the golden age of mankind which had preceded the fall of man. That age had seen man in a state of innocence and justice, he lived under the guidance of the rules of reason. After his fall, the absolute law of nature could no longer be realized and as a result, human law together with property and institutions had appeared.

Positive (man-made) law must strive so as to assist man in fulfilling the command of God’s eternal law. Thus the church must strive total sovereignty over the state.

If worldly law conflicts with the eternal, natural law the provisions of the world law should be ignored. **World law which was unjust could not be law**

2. **Isidore (560-636)** reiterated Augustine's teachings on the law and taught that only those rulers who acted in a spirit of justice ought to command the respect of their subjects.

He said that natural law is common to all peoples in that it is possessed by an instinct of nature, not by any human agreement, as marriage, the begetting and rearing of children, the common possession of all things, the universal freedom of all among others. For this or whatever is like this could never constitute an injustice but must be considered in accordance with natural equity.

3. **Gratian (1140)**, a Benedictine, published a collection of texts in which he noted that the law of nature was considered as the law of God. If a custom were to be recognized as valid law it would have to conform to the golden rule of the Gospel (All things whatsoever ye would that men should do to you, do you even so to them).

Statutes, secular and ecclesiastical, were to be rejected totally if shown to be contrary to natural law.

Aquinas' concept of the law

The writings of Aquinas on law, recorded largely in the *Summa Theologiae*, Part 11 9C 1266), have dominated the thinking of the Catholic jurists for centuries. The contemporary emergence of the Neo-Scholastic movement testifies to the enduring influence of the remarkable synthesis of law achieved by Aquinas.

Fundamental to the synthesis is a set of precisely enunciated beliefs.

God is the highest good and from him all things emerge.

The order of nature which we can observe and analyze is God's creation, and because order presupposes reason, there is some transcendent reason behind the creation.

Law and Divine Reason

Law in all its manifestations flows ultimately from Divine Reason.

Aquinas argued:

Law is a rule and measure of acts, whereby man is induced to act or is restrained from acting, now the rule and measure of human acts is the reason, which is the first principle of human acts, consequently it follows that law is something pertaining to reason.

Man's laws are ordinances of reason for the common good made by him who has the care of the community and promulgated.

Thomas Aquinas³ four fold classification of law (1224-1274) and these forms include: -

1. The Eternal law (Lex aeterna).

It's the law only known to God who rationally directs all creatures. All creatures are ruled by the law but the implication of man's possession of free will is his capacity to disobey or act contrary to this law. Therefore, by this law, unreasoning things must obey it, but man who has free will has the capacity to disobey.

The eternal law in its totality is known to God only but some blessed persons may perceive it in its full truth. The broad general principle that mirror God's intentions for mankind comprise the natural law.

2. The Divine law (Lex Divina).

This denotes to the law revealed in scriptures (**Bible**). It comes into plan when law discovered by human reason fails by helping to clear doubts in the mind of man as to the law of nature. In this regard it's taken as a

³ St. Thomas Aquinas < <https://www.britannica.com/biography/Saint-Thomas-Aquinas> > accessed 15th.january.2023.

guide for human reason and can be revealed to selected few prophets. **For example**, in the bible, God revealed certain laws or rules of conduct to the people of Israel through prophets like; Isaiah, Jeremiah, Ezekiel and among others.

As revealed in scriptures, although not identical with natural law, it is not contrary to it. Divine revelation – God’s law provides a guide for man’s reason thus allowing his nature to be perfected by Divine grace.

3. The Natural law (Lex Naturalis).

This connotes to the law that manifests man’s participation in the working of cosmic law or the law governing the universe through the **medium of reason**. It’s therefore that small voice in man’s heart and the small god which exposes the difference between good and evil and encourages one to do the former and to refrain from the latter.

Everything seeks the preservation of its own being according to its nature. By reason of this inclination whatever is a means of preserving human life and awarding off its obstacles, belongs to the natural law.

4. The Human (Lex Humana).

This refers to the “**manmade**” law and can be termed as positive law though it incorporates portion of natural law. This is based on the fact that, man’s participation in eternal law enables one to have wisdom to enact positive law for the governance, regulation of human conduct in society. Such laws may or may not conform to the law of God (Natural law) and where it conforms, it is said to harmonize with the divine will of creator and where it does not, it’s said to fail the test of natural law or denied legality.

It is prudent to note that, the principles of natural law as expounded by Aquinas have been placed by commentators in three groups:

- 1. The supreme group**, demands love for God and one’s neighbors, the doing of good and the avoiding of evil.

2. **The second group**, based on the first group and reiterating the principles of the Ten Commandments.
3. **The third group**, which is constituted by the rules of justice resulting from the application of principles in the first and second groups to particular situations.

When is a law not law?

Aquinas argued that, in the light of natural principles, laws framed by men are either just or unjust. A law is not law merely because it is decreed by a sovereign.

Where a law has the appropriate moral dimension and is ordained to the common good, it is a just law. Hence, where it conforms to natural law it is just.

Unjust laws

1. A law which is contrary to human good either in respect of its form or end, is no law at all.
2. A law which is opposed to the Divine good, such as the law of a tyrant inducing to idolatry (and therefore, a violation of the natural law), must be disregarded, because it is better to obey God than man.

Significance of Aquinas' view of natural law

Natural law demands the elevation of human reason. God's purposes maybe discerned in part by reason. God's law is the reason of his wisdom, and human laws and institutions are best-founded when built upon reason.

However, not all Catholic scholars in the time of Aquinas accepted his conclusions/Criticisms of Aquinas view of natural law

1. **John Duns Scotus (1265-1308)**, a Franciscan scholar, argued that, in relation to natural law, reason was not superior to will. Man's will, not his reason, guides his intellectual insight.

The single principle of natural law is to love God; other principles of human behavior are matters for decision within man-made law.

2. **William of Occam (1290-1349)**, suggested that philosophical speculation be confined to the observable. The modification by man-made law of principles deduced from natural law was permissible and was not, as Aquinas seemed to suggest, contrary to reason and Divine law.

John Finnis,

Finnis a British Scholar (1929) is a Catholic scholar who seeks to investigate the relevance of natural law to contemporary society. In his *Natural Law and Human Rights* (1980) he restates aspects of natural law doctrine in novel form.

Morality and law are given a rational basis which rests upon two principles.

First, there are certain basic values of human existence (human goods) which are self-evident. They may be secured only through the law and its institutions.

Secondly, the theory of natural law is the identification of practical right-mindedness/reasonableness, of good and proper order among men is required to achieve human goods and this necessitates the existence of an appropriate system of law and in individual conduct.

It is worth to note that, Finnis definition consists of two (2) concepts that is: there are certain basic values that are good for human beings and **secondly**, the requirement of practical reasonableness (human conscience).

Under natural law and Legal system,

Finnis keeps in mind the nature, purpose and ultimate significance of society. He notes that jurists must keep in mind the need to bring definition, clarity and predictability into the reactions of members of society, and this requires organized rules and institutions.

Human well-being and the flourishing of the individual require a legal system which will exemplify the rule of law as derived from the natural law. The rules of such a system would ensure clear, coherent and stable regulations, accountability of those who administer the law, and administration carried out in a manner which is seen to be consistent with promulgated principles.

The concept of human goods.

Finnis set out a catalogue of forms of “human flourishing” that is, the requirements of individual who are to attain their potential. Seven such irreducibly basic goods are enumerated although there are other forms of human goods and these are

1. Life

Life is in accordance with traditional principles of natural law – a basic value which corresponds to the human being’s drive for self- preservation. Life is used by Finnis as signifying every aspect of the vitality which puts a human being in good shape for self- determination. The realization of such a basic human purpose involves the existence of a functioning system of law.

Finnis notes that all human societies appear to show a significant measure of concern for the value of life and none allows killing without a fairly definite justification.

2. Knowledge

Speculative knowledge with which Finnis is concerned, comprises knowledge sought for its own sake rather than in pursuit of some other objective. It will embody the drive of curiosity and range from scientific enquiry to mundane questioning.

Truth as the end of knowledge is worth pursuing.

The principle that knowledge is good to be persuaded is according to Finnis, self-evident and its value as a guide to action requires no further principle to support it.

3. **Play**

A large and irreducible element of human culture involving engaging in performances which have no point beyond the performance itself, enjoyed for its sake.

4. **Aesthetic experience**

This need not involve an action of one's own, it maybe the inner experience of say, an appreciation of beauty.

5. **Sociability**

This involves friendship. To be in a relationship of friendship with at least one other person is a fundamental form of good.

6. **Practical reasonableness**

This basic good involves bringing one's intelligence to bear effectively on problems related to the choosing of one's actions and life style and molding one's character.

7. **Religion**

Finnis gives this term a wide meaning – recognition (however residual) of and concern about, an order of things beyond each and every man.

Justice and liberty. Finnis stated that justice requires due respect for liberty which while itself not one of the basic human goods, is a necessary condition for the active human realization of any of those goods.

The concept of practical reasonableness.

Finnis classifies under ten (10) headings the essential features of practical reasonableness (which features also as a human good).

These headings encapsulate principles which seem to be in the spirit of the classical natural law and these are;

1. If the individual is to distinguish moral right actions from wrong actions, he must have a rational life span, a harmonious set of orientations, purposes and commitments.
2. He must pay equal regard to each of the basic human goods.
3. He must not leave out of account the necessity for others to participate in these goods.
4. He must not attribute to any project the overriding significance of a basic human good.
5. He must pursue his general commitments with creativity and must not
6. He must not waste his opportunities by acting inefficiently.
7. He must not choose directly against human good.
8. He must foster the common good of his community.
9. He must not act contrary to his conscience.
10. He must not choose apparent goods which he knows to be merely the stimulations of real goods.

Unjust laws

Finnis stands within the tradition of the natural law in his consideration of just and unjust laws. For purposes of assessing one's legal obligations in the moral sense the individual may exercise his right to discount those laws which are unjust.

Laws of this type do not possess the moral authority which ought to stem from their own or formal source but unjust laws are not a nullity however do not meet the demands of natural law.

Finnis and natural rights

Finnis refers in his text to certain absolute human claim rights and these include;

1. A right of an individual not to have his life taken directly as a means to any further end.

2. A right not to be positively lied to in situations in which one expects reasonable factual information.
3. A right not to be condemned on charges on charges which are known to be false.
4. A right not to be deprived of procreative capacities.
5. The right to be considered in any assessment of what is required in the name of the common good of society.

Criticisms of Finnis

Criticisms of Finnis have drawn attention to the very wide nature of the categories of human goods, rendering analysis of knowledge, sociability, extremely difficult.

His classification of religion as a human good gives rise to unusual problems of interpretation. Some jurists see in the list of human goods yet another highly-subjectively catalogue of principles which most religions have advocated as constituting paths to virtue.

Hume (1711-1776) holds that our knowledge of matters of fact can be derived solely from the data of experience. He further holds that natural law is real only in the sense that some individual entertain a feeling that it exists. Its truths cannot be asserted meaningfully, nor can they be demonstrated in acceptable fashion. Its attempts to derive ought from is are meaningless.

Bentham (1748-1831) attacked natural law as nothing but a phrase 'nonsense upon stilts'. Additionally, the spread of the doctrine of natural law would undermine the fabric of sovereignty within a community.

Rose (1899-1979) a Danish jurist delivers a sustained attack on the entire conceptual basis of natural law;

- The metaphysical speculation underlying natural law is totally beyond the reach of verification, such speculation belongs to the childhood of civilization

- Natural law has been used to defend slavery and fraternity. How may one make a valid choice between these absolutes except by absolute assertion elevated above all rational argumentation?
- The ultimate basis for every so-called natural right is the individual's private and direct insight, i.e., intuition. It cannot be otherwise and one person's intuition is as good as that of another.

Neo Scholasticism and the natural law

Today's Neo-Scholastic movement in the field of natural law is concerned with the further development and adoption of the teachings of Aquinas on law.

It is important to note that not all members of this movement accept the theology of Aquinas: thus, **Adler (1902)** a prominent American advocate of a contemporary natural law and a non-Catholic, **notes six (6) widely- held principles derived directly from Aquinas, which have unusual relevance for law today:**

1. Government made laws do not constitute the sole directions of human conduct which ought to apply to persons within society.
2. There can be discovered rules and principles with application to all persons in all types of society.
3. General principles of conduct exist outside man-made rules of law
4. These principles will emerge through man's exercise of his reason
5. General principles, resulting from man's reason, should be the source of all particular rules of conduct.

Adler further advocates that attention be paid to the following principles;

1. That the positive (man-made) law should not constitute the sole direction of discovered
2. That universal rules of conduct can be discovered
3. That general principles of conduct emerging from man's exercise of his reason can provide touchstones in order to judge the validity and worth of the rules of the law.

The 17th century Dutch jurist **Hugo Grotius** believes that humans by nature are not only reasonable but social. Thus, the rules that are natural to them are dictated to them by **reason alone** and enable them to live in harmony with one another.

Salmond puts that, it's the **idea and law** that consists of rules in accordance with **reason and nature**. He accords natural law to ordinary human law that's truly law in so far as it conforms to the principles of natural justice and morality that constitute natural law. This is envisaged on the fact that man should live according to nature since the distinctive feature of man's nature is his endowment with reason and therefore live to the dictates of reason.

Salmond further inscribes natural law as branch of law that's described as the law of **nature, higher law, eternal and divine law**.

Cicero a Roman Orator, states that, **true law is a right reason in agreement with nature whose appreciation is "universal, unchanging and everlasting."** It is a sin to try to alter this law, nor is it allowable to attempt to repeal any part of it and impossible to abolish it entirely.

Cicero further propounds that, “we need not to look outside ourselves for an expounder or interpreter of it”. And there will not be different laws at Rome and at Athens or at future but one external and unchangeable law will be valid for all nations and all times and there will be one master and ruler (God) over us all for, He’s the author of this law, the promulgator and its enforcement as the judge. Whoever disobeys it denies his/her human nature, and by reason of this fact, he will suffer the worst penalties, even if he escapes what’s commonly considered punishment.⁴

Burlamqui in his principles of natural law 1751, emphasized that, natural law comprises of rules which necessarily agree with nature and state of man. That, without observing their maxims, the peace and happiness of society can never be preserved.

They are called natural laws because knowledge of them may be attained merely by the light of reason, from the act of their essential agreeableness with the constitution of human nature **but** rather laws founded upon the general constitution of human nature and only based upon the will of God.

Radbruch a positivist in his legal philosophy 1945 said, “these are principles of law that are stronger than any statute. Any laws conflicting with its principles is devoid of its validity.” Natural law theories are basically theological as they are all alluded to God. These theories rely on allusion that, the universe is being founded and ruled by **some deity (God)** who created principles by which the universe inhabited by human beings is ordered and regulated.

Its from these principles that, the **morals or conscience of humanity derive** because natural law exists in rational human beings who are created by God by possessing rational ideas, capacity to know what is good and bad. They have the intellectual capacity without assistance of another person to discover natural law. This is contrally to secular law where one is guided by his/ her ensuing knowledge to be in position to order his life

⁴ Cicero's Teaching on Natural Law < https://www.hillsdale.edu/wp-content/uploads/2017/07/1981-Ciceros_Teaching_on_Natural_Law.pdf> accessed 15th.january.2023.

according to his choice in a moral way or an immoral manner. Thus, on extreme note, Hugo Grotius stated “*There would be natural law even if there were no God.*”

Stammler (1856-1938), a German jurist, was concerned with the formulation of a right law based upon justice. He argues that each era requires its own right law which should co-exist with its positive law.

The rules of the community’s positive law should be evaluated, so as to justify their use, by reference to standards derived from the prevalent ethical and philosophical doctrines, and a law found to be deficient would be corrected by the courts or the legislature.

Stammler set out his views as follows:

1. The jurist’s task is to assist in the function of providing the law with a quality of objective justice through the frequent appraisal of empirically-conditioned legal rules.
2. Law is a vital aspect of man’s social existence, embodying, in an important sense, the collective will of the community and binding citizens in a unity of purpose.
3. Man must be treated as an end in himself, not as the mere object of an arbitrary will.
4. The exercise of reason is essential for the understanding and acceptance of one’s responsibilities to other members of society.
5. A society in flux requires no modification of the essential idea of law, what is needed is a modification of rules in accordance with the realities of that society –essentially, a natural law with a variable content.

Historical evolution of natural law.

In tracing the evolution of natural law, it's worth to be discerned of conception of natural law among almost all people.⁵ It's nevertheless to the Greeks that we must first look⁶. Whether the law of nature was first conceived as governing the cosmic and later only applied to man or society or as (Kelsen contends) that the idea of universal law was projection of the law of the state into the physical universe, may well be disputed.

The Greeks though never interested in the technical development of law, they were much concerned in exploring its philosophical foundations and in doing so, evolved many fundamental concepts of which natural law was the most important.

The most important scholars are; **St. Thomas Aquinas, (1225-1274)** who had to later formulate from **Aristotle** and **Cicero**. Other catholic scholars like of **Augustine (354-430)**, **Isidore 560-636** also preceded him.

These catholic scholars believed that indeed law was inseparable from God, morality and ethics. These believed that indeed the law was Devine and manifested from GOD through his messengers (prophets) and the holy books such the bible.

The evolution of natural law can be deduced from the decline of the city- state and rise of the large empires in the Greek world, that the natural laws as a universal system comes to the fore. Until the stoics "nature".⁷ Had meant the "order of things", This came to be identified with man's reason. When man lived according to "reason", he was living "naturally" as this contained universal force. The best representative of this thinking is Roman orator, Cicero⁸. His definition of natural law as a "right reason in agreement with nature" has been enormously influential. He was the first to contend for the striking down of positive laws which contravened the natural law.

⁵ (Lloyde, The idea of law (1985), pp 48-51. For the influence of Hebrew sources particularly the Noahite code- on selden, see M. crowe (1987) 12 Natural law forum 184 court.

⁶ on the Greek contribution see L.weinreb, Natural law and justice, Chap. 1 (1987).

⁷ for the different meanings of this for the stoics, see finnis, op, cit, pg 374-377.

⁸ See post, 137 and see Weinreb op, cit n, 12, p 39-41.

Medieval Period/ ancient

This era was championed by theology of the catholic church which set the tone and patterns of all speculative thought. Two (2) vital principles animated medieval thought. **Namely; *Unity derived from God and involving one faith, one church, empire and secondly supremacy of the law not merely man-made but rather conceived as part of the universe***⁹. During this era, Aquinas was bedeviled by the notion of law and human dominion being rooted in sin. It was not until Aristotelian philosophy and catholic faith in a universal divine, he rejected the idea that civil government was necessarily tainted with original sin and argued for the existence of a hierarchy of law derived ultimately from God in which positive law was worthy for its own sake¹⁰. It's upon Aquinas discernment that natural law could be added to positive law as far as the first principles were concerned not subtracted from, thus development of natural law.

Concept of natural law according to Thomas Aquinas. (1225- 1274)- discussed supra.

Aquinas notes that;

1. Law and morality are not separable
2. All laws should be in line with natural law
3. Law is Divine and created by God
4. Interprets law as part of theological development

Lastly, Aquinas defined five **'Primary Precepts'** which detail the steps of leading a moral life; **to seek self-preservation; to reproduce; to nurture offspring through education; to live in society; and to worship God.**

⁹ Political theories of middle Ages (ed. Maitland) pp.9 et. Esp and 73 et esq.

¹⁰ See. T. Gilby, principality and polity, PP. 146 et Seq.

Modern natural law/scholastic era (110-1400) “classical natural law era”

This was advanced between 18th and 20th century. The 18th century was referred to as the “**age of reason**” where **secularism and rationalism** held sway and the natural law in general came into existence. These classical natural law scholars had different intellectual disagreements with the ancient ones as regards what natural law means but still agreed to a larger extent. This particular stage was influenced by a number of events at the time which among others included the following;

1. **The industrial revolution** which led to growth in commodity production and gave birth to merchant classes which was inferior in status but gradually became richer and stronger and inevitably gained influence in society.
2. **Dissolution of feudalism.** People become less attached to land as a diversion from feudalism this because many had become merchants and there was no need of being tied onto land as a means of livelihood.
3. **Development at both national and international level.** Capitalism after the collapse of feudalism led to development of nation states which called for creation of governments.
4. **Separation of law from theology.** The above-mentioned developments all triggered the collapse of the feudal system which elevated the standards of middle-class business men who later began advocating for people’s rights.

The 18th Century thinkers included; **Immanuel Kant, David Hume, Montesquieu** and **Edmond Burke** among others. However, the above thinkers did not reject natural law principles but modified them. These started viewing both economic rights and civil rights as part and parcel of natural law. With the continuation of their advocacy many revolutions such as the **American and French revolutions** were witnessed.

The classical/ modern natural law school had the following key elements;

1. It was secular and radical in nature
2. Law played a paramount role as compared to religion
3. Jurists played a central role in developing natural law concepts

The philosophers of this stage applied reasoning and rationality, they separated law and theology.

Niccolomo Machiavelli [1469-1527].

Italian diplomat, politician, philosopher and writer who authored a book “the **prince**”. In his book he illustrated how monarchies should rule where he clearly stated that “**a prince never lacks legitimate reasons to break his promise**” this clearly showed that to him a leader wasn’t answerable to his subjects and he had the authority to do whatever he wished as long as it is in his interest. This was the opposite as before during the ancient era a leader had to be honest, God fearing and truthful to his subjects. The prince indicates that indeed a ruler should have authority and that determines his power and as well states that laws are only meaningful if enforced. Therefore, a ruler should command an army. He states that its better to be feared than loved. He further states that the ruler should not depend or rely on people’s admiration, he only has a duty to make sure that he is obeyed. In his book still Machiavelli states that a ruler must to do anything to stay in power even though he doesn’t support violence. Machiavelli as opposed to the ancient natural law scholars he puts it straight that a ruler should do everything to make sure everything goes his way and not put faith in God that things will somehow workout.

“Another reason to carry a big stick: No one respects weak people.” Machiavelli quotes...

Hugo Grotius [1583-1645]

Hugo Grotius was Dutch jurist and thinker considered to be the father of international law and never believed in war but in the “**international**

societal doctrine.” he believed that international conflicts can be resolved through actual laws and agreements other than warfare. He wanted to build a systematic system to avoid violence and warfare.

He asserts that natural law is based on the nature of man and that to discover what natural law is, we must see what is in accordance with the **rational and social nature of man** and then test our conclusion by seeing whether **a rule has been adopted by all nations or at least the most civilized**. He indicates that indeed natural law is the parent of all laws. He further asserts that natural law entails principles of fairness hence calls for abstinence from what belongs to others, restoration or compensation, repayment and inflicting of fair punishments where one goes wrong. He lastly defined natural law as “**the dictate of right of reason**”

Immanuel Kant (1724-1804) argued that morality arose from freedom and that when law is in conformity with morality one can be forced to obey the law without forfeiting freedom. His departure from the natural law was in his argument that freedom meant autonomy without no subjection to any determination other than one’s self.

Baron de Montesquieu (1689-1755)¹¹. He had no doubt that ‘the world of civil society has certainly been made by men’.¹² For Montesquieu mankind was influenced by a variety of factors; climate, religion, laws maxims of government, morals and customs. He sees an individual as merely an instrument of historical change.

Natural law under the enlignment era

The **eighteenth (18) century** was also a period of the Scottish enlightenment¹³. **Hume (1711-76), Adam Smith (1723-90)**¹⁴ All this were group of intellectuals dedicated to study society scientifically. **Hume**

¹¹ See the spirit of laws (1748). Montesquieu and natural law see M. Zuckert (2001) 18 soc. Phil & Pol. 227

¹² The New science) ed) Bargin and Frisch) (1948) (originally published 1725), S. 331

¹³ The enlightenment; An interpretation (1967)-1970. On Scotland see A chitris

¹⁴ On the contribution to jurisprudence of whom see D.D Raphael, Adam Smith (1985)

developed a modern theory of natural law,¹⁵ an exclusively empirical version of the fundamental principles of natural law. He argued that an invention of a naturally inventive species, and from that point of view ‘natural; which is as old as the species.’¹⁶ Hume called the rules of justice natural laws since they are as old and universal as society and the human species but prior to government and positive law.¹⁷

David Humes [1711-1779]

Humes urges that the modern theory of natural law ought to be exclusive from religion and should be dependent of the science of morality and law. He also asserts that laws of justice aren’t created by government but rather are inherent and universal in nature. He argues that these principles natural laws of justice existed even before governments were created.

During the **19th century**, natural law was not very influential because it was manned by materialism and questions of law, state and sovereignty were dominated by positivism. This led to the discovery that, laws of social order would be explained as the laws of state and it was dominated by scientific thought which affected both laws and social sciences, hence, the development of Marxism or historical materialism. The 19th century did not envisage much of natural law but rather other theories however, it was revived during the 20th century.

The **20th century** attracted several natural law writers from the beginning to date. These included scholars like; Lon fuller, HLA Hart and John Finnis.

H.L.A Hart though being a normative positivist, his ideas are relevant as far as he attempts to marry positivist ideas and natural law ideas. Hart made three **(3)** major prepositions in attempt to describe what natural law. He stated that, ‘Law is a social fact, law and morals are conceptually separable and that, law consist of the union of primary and secondary “social rules”’.

¹⁵ By D. Forbes, Hume’s philosophical politics (1975), chaps

¹⁶ Ibid, P 70

¹⁷ ibid

In reference to social rules, He argued that, there are certain substantive rules which are essential of human beings are to live continuously together in close proximity. Such rules include, Human vulnerability, approximate equality, Limited altruism (concern for other people's welfare needs above oneself or one's own interest) limited resources, limited understanding and strength of will. Therefore, Hart saw no necessary link between law and morals.

John Finnis in his book 'Natural law and natural rights' tried to revive and reinstate natural law concepts. According to Finnis, natural law is set of principles of practical reasonableness in ordering human life and community.

In his case, he identified seven (7) basic goals/ basic values which every reasonable person must assert for purposes of human survival and these **include**; Life which must be protected, knowledge or preference of truth over falsehood, love for arts, Aesthetic experience for appreciation of beauty, being social with other people, practical reasonableness by use of intelligence to effectively deal with social problems and religion which he meant interest in the origin and purpose of life which if expressed as above is cosmic order and acceptable.

Unique features or characteristics of natural law

1. Natural law is universal unchanging and everlasting.
2. Whatever is good is in accordance with nature but that which is evil is contrary to natural and therefore, natural law is good.
3. There exists an order in nature which is rational and which can be known by man.
4. Whatever exists is in the order of nature (cosmic order). According to Aquinas, natural represents man's participation in the cosmic order with the aid of the power God has put in man.
5. Natural law is usually used synonymously with morality. Where both coincide, such synonymous usage is justified and where they deviate

or relating to only person's social or moral way of life, it should be understood as not attributing it to natural law.

6. Natural law essential focuses on the law as it ought to be a law whose existence is proved by reference to transcendental, idealistic, theological argument. Natural law therefore, reflects the order of nature and represents a blue print for decent orderly existence of humanity. According to Aquinas, every law should be just and he stated that, law to be just should move together with both values and morals.

Relevance of natural law

In critical analysis of the Natural law theory, it's paramount to note down its influence, relevance and application in the judicial system of Uganda and communities. these relevancies include; -

1. The natural law concept is of relevance to natural individuals' rights of Uganda. **Forexample**, the 1995 constitution of the Republic of Uganda as amended includes bill of rights enshrined under **chapter 4** which recognizes the fundamental freedom and rights of people. The constitution further provides that fundamental rights and freedoms of individuals are inherent and not granted by the state. Such rights and freedoms of individuals and groups enshrined in this chapter shall be protected upheld and promoted by all organs of state¹⁸
2. The theory seeks universality and commonality in human law, values and institutions across the global. This meets the standards of United Nations which tends to bear laws for the protection of human rights and environmental law among other which are ratified by government pursuant to **Article 123 of the 1995 constitution** which allows Uganda to ratify treaties and conventions for instance,

¹⁸ Article 20 of the 1995 constitution of the Republic of Uganda as amended.

Universal declaration of Human rights (UDHR), the African charter were ratified by Uganda among other states.

3. Natural law emphasizes the need for legal system to have moral goals and values although the definition of moral differs/ varies from place to place for different people, it's still relevant in Uganda. This relevance is reflected in the fact that Uganda penalizes acts like homosexuality, bestiality, adultery. **forexmaple**, under **section 4 of divorce Act**, Adultery is one of the grounds of divorce in family law.
4. The social contract arm of natural law advances the concept of representative system of governance which is in practice in Uganda today making the theory applicable. The constitution states that sovereignty belongs to the people who shall exercise their sovereignty in accordance with this constitution because all the authority emanates from the people of Uganda and people shall be governed through their will and consent¹⁹. **In furtherance of the above, the constitution provides that every person above eighteen (18) years has a right to vote** despite the mistreatments envisaged during this exercise²⁰
5. The notion of rule of law was further developed from the natural school. Under this doctrine, the rules provide for equality of all persons before the law²¹. In the case of **Hon. Karuhanga Gerald Vs Attorney General**²². Rule of law was defined to mean a doctrine where people are below the law. This notion is reflected in the Uganda judicial system despite criticisms and abuse by leaders hence failure to observe the rule of law.
6. Customary law is recognised in the natural law school and has been regarded as major source of law in Uganda. Uganda recognizes customary laws and the norms which are in line with **Article 2 of the 1995 constitution** as source of law and ²³. In the case of

¹⁹ Article 1 of the 1995 constitution of the Republic of Uganda as amended.

²⁰ Article 59 of the 1995 constitution of Republic of Uganda as amended.

²¹ Article 21 of the 1995 constitution of Republic of Uganda as amended.

²² Constitutional petition 2014.

²³ Section 15 of Judicature Act. Cap 13.

Bruno Kiwuwa Vs Ivan Serunkuma & Juliet Namazzi²⁴. where court recognized a Kiganda culture of not marrying in the same clan and it defined customs as practice that has been followed in particular locality in such circumstance that it has to be accepted as part of the law of that locality.

7. Natural proponents also propounded that some rights should be limited. The constitution of the Republic of Uganda Limits certain rights like freedom of movements, liberty, speech.²⁵ **For example** Uganda restricted and declared lockdown where people were not allowed to move to prevent the spread of Covid -19 and Ebola in Uganda.
8. The notion of natural law has enhanced for the existence of doctrine of separation of powers which is reflected in the constitution of Uganda where eth three **(3)** arms of government Executive, judiciary and legislature are required to work independently despite several manipulations. **These are provided under chapter 7,8 and 6 respectively.**
9. The values attached to religions by naturalist also reflects the African traditional jurisprudence. **For instance**, religion encourages humanity which is reflected in African Ubuntu bulamu (love your neighbor as you love yourself).
10. Natural law theory resulted to the outbreak of revolutions and liberal movements **for example** the 1986 coming into power of the natural Resistance Movement (NRM), the 1789 French revolution and American war of independence which impacted need for independence among African states for example. It influenced leaders like; **Mandela (RIP)** of south Africa, **Nkwame Nkrumah** of Ghana in 1957 to fight for their independence from the colonial and British government / Rule.

²⁴ HCCS 52 of 2006.

²⁵ Article 43 of the 1995 constitution as amended.

Criticisms to the natural law theory

- 1) Two philosophers (**Aquinas and Aristotle**) integral to the theory have different views about God's role in nature, which confuses the issue, especially when trying to decipher if the theory relies on the existence of God.
- 2) Human behavior may be solely reliant upon the environment that one is exposed to, which includes social classes, education and upbringing, this opposes the theory since it clearly states that laws and rights are inherent in nature and universal.
- 3) How do we determine the essential or morally praiseworthy traits of human nature? Traditional natural law theory has picked out very positive traits, such as "the desire to know the truth, to choose the good, and to develop as healthy mature human beings". But some philosophers, such as Hobbes, have found human beings to be essentially selfish. It is questionable that behavior in accordance with human nature is morally right and behavior not in accord with human nature is morally wrong. For instance, if it turns out that human beings (at least the males) are naturally aggressive, should we infer that war and fighting are morally, right?
- 4) For Aquinas, the reason why nature had the order it did was because God had put it there. Other thinkers, such as Aristotle, did not believe that this order was divinely inspired. Does this alleged natural moral order require that we believe that there is a God that has produced this natural moral order? Evolutionary theory has challenged much of the basis of thinking that there is a moral natural order, since on evolutionary theory species has developed the way they have out of survival needs.

Conclusion

The concept of Natural law is so relevant, appreciative and influential in the global setup and existence of nature (Cosmic order). While tracing its origin, it has positively impacted the global setup and governance despite certain abuses that have been registered by the leaders who assume leadership powers at the expense and violation of human rights in the communities as discussed above.

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